



Representation of the People Act 1978

1978 CHAPTER 32

An Act to increase the limits on candidates' election expenses at parliamentary elections and to enable the Secretary of State by order to vary the limits on candidates' election expenses at parliamentary and other elections.
[20th July 1978]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. For paragraph (a) of section 64(2) of the Representation of the People Act 1949 (limits on candidates' election expenses at parliamentary elections), there is substituted the following paragraph:—

“(a) for a candidate at a parliamentary election—

(i) in a county constituency, £1,750 together with an additional 2p for every entry in the register of electors to be used at the election (as first published); and

(ii) in a borough constituency, £1,750 together with an additional 1½p for every entry in the register of electors to be used at the election (as first published);”.

Increase of limits on candidates' expenses at parliamentary elections.
1949 c. 68.

Power to
vary limits on
election
expenses.
1949 c. 68.

2.—(1) The Secretary of State may, in the circumstances and to the extent specified in subsection (2) below, by order vary any of the maximum amounts of candidates' election expenses specified in the following provisions of the Representation of the People Act 1949:—

- (a) section 64(2)(a) (parliamentary elections);
- (b) section 64(2)(b) (certain local government elections);
- (c) section 167(4) (ward elections);
- (d) section 167(5) (elections by liverymen in common hall).

(2) The Secretary of State may vary a maximum amount mentioned in subsection (1) above where in his opinion there has been a change in the value of money since the last occasion on which that amount was varied by order under subsection (1) or, where the amount has not previously been so varied—

- (a) since the passing of this Act in the case of an amount specified in section 64(2)(a) or 167(5) of the Act of 1949, or
- (b) since the 30th March 1977 in the case of an amount specified in section 64(2)(b) or 167(4) of the Act of 1949,

and the variation shall be such as in the opinion of the Secretary of State is justified by that change.

(3) An order under subsection (1) above shall not be made unless a draft of the order has been laid before, and approved by resolution of, each House of Parliament.

(4) The power to make an order under subsection (1) above shall be exercisable by statutory instrument and includes power to revoke or vary an order so made.

Supple-
mentary
provisions.

3.—(1) References in this Act to the Representation of the People Act 1949 are references to that Act as amended by or under any other Act, including this Act.

1974 c. 10.

(2) The Representation of the People Act 1974 is hereby repealed.

Citation.

4. This Act may be cited as the Representation of the People Act 1978 and shall be included among the Acts which may be cited as the Representation of the People Acts.